

BC721121 BC721121

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Case Number: BC721121 Hearing Date: July 27, 2026 Dept: 408

Proposed Plaintiff-Intervenor Chino Americana

Concepts 2013303 LLC's Motion for Leave to Intervene is GRANTED.

I.

BACKGROUND

On September 11, 2018, Plaintiff Anthony Sam ("Plaintiff" or "Sam"), individually and as Managing Member of Chino Americana Concepts 2013303 LLC ("Chino LLC"), commenced this action.

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On December 28, 2018, Plaintiff filed a First Amended Complaint ("FAC") against Defendants Renee Kwan ("Kwan"), Vibrant Developments LLC ("Vibrant"), Asset Management 328 LLC ("328 LLC"), CAC 600 LLC ("600 LLC"), Chino Americana Holdings LLC ("CAH"), Board of Fire and Police Pension Commissioners (erroneously sued as Los Angeles Fire and Police Pensions Board of Commissioners) ("Board of Fire and Police"), First American Title Insurance Company ("First American"), and Maurice A. Neri ("Neri", collectively as "Defendants") alleging causes of action for:

1. Breach of Fiduciary

Duty;

2. Breach of

Contract;

3. Quiet

Title/Cancellation of Instrument;

4.

Breach of Covenant of Good Faith and Fair Dealing;

5.

Violations of Business and Professions Code Sections 12700, et seq.;

6.

Escrow Negligence;

7.

Fraud;

8.

Civil Conspiracy; and

9.

Declaratory Relief.

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On March 12, 2019, First American filed an answer to Plaintiff's FAC and a cross-complaint against Kwan for indemnity.

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On March 13, 2019, pursuant to Plaintiff's request, Neri was dismissed without prejudice.

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On April 26, 2019, (1) Vibrant and Kwan filed an answer to Plaintiff's FAC; (2) Vibrant filed a cross-complaint against Plaintiff for declaratory relief; and (3) 328 LLC, 600 LLC, and CAH filed an answer to Plaintiff's FAC.

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On May 9, 2019, the Board of Fire and Police filed an answer to

Plaintiff's FAC and a cross-complaint against Kwan, Vibrant, 328 LLC, 600 LLC, CAH, and First American for indemnity; apportionment, contribution, and/or partial indemnity; and declaratory relief.

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On June 3, 2019, pursuant to Plaintiff's request, dismissal without prejudice was entered as to the civil conspiracy cause of action against the Board of Fire and Police.

On June 14, 2019, Kwan filed an answer to First American's cross-complaint.

On June 27, 2019, Kwan, Vibrant, 328 LLC, 600 LLC, and CAH filed an answer to the Board of Fire and Police's cross-complaint.

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On July 11, 2019, Vibrant and Kwan filed a First Amended Cross-Complaint ("FACC") against Sam for declaratory relief.

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On August 7, 2019, pursuant to the Board of Fire and Police's request, dismissal without prejudice was entered as to First American from its cross-complaint.

On August 12, 2019, Plaintiff filed an answer to Vibrant and Kwan's FACC.

On November 15, 2019, the court denied First American's Motion for Summary Judgment against Plaintiff's FAC.

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On April 22, 2020, Plaintiff filed an amendment to the FAC naming Does 1 and 2 as Hertzberg Holdings LLC ("Hertzberg") and Fidelity Surety & Investments Inc. ("Fidelity"), respectively.

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On July 29, 2020, the court granted the Board of Fire and Police's Motion for Leave to File a First Amended Cross-Complaint; and granted Hertzberg's Motion to Quash Service of Summons.

On August 14, 2020, the court granted the Board of Fire and Police's Motion for Summary Judgment against Plaintiff's FAC.

On September 9, 2020, the court (1) sustained Fidelity's Demurrer without leave to amend as to all causes of action brought on behalf of Chino LLC; (2) sustained it without leave to amend as to the first, second, fourth, sixth and ninth causes of action brought on behalf of Plaintiff individually; and (3) sustained it with leave to amend as to the fifth, seventh, and eighth causes of action brought on behalf of Plaintiff individually.

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On September 24, 2020, Plaintiff filed a Second Amended Complaint ("SAC").

On November 16, 2020, pursuant to Plaintiff's request, dismissal was entered as to Neri.

On November 20, 2020, First American filed an answer to Plaintiff's SAC.

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On December 9, 2020, pursuant to Board of Fire and Police's request, dismissal was entered as to its entire cross-complaint.

On February 19, 2021, Kwan, Vibrant, 328 LLC, 600 LLC, and CAH filed an answer to Plaintiff's SAC.

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On February 23, 2021, pursuant to Plaintiff's request, dismissal was entered as to Fidelity as to the Doe 2 Amendment only.

On March 3, 2021, Chino LLC filed a complaint against Plaintiff in

21STCV08582 alleging causes of action for declaratory relief and unfair business practices.

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On March 12, 2021, the court found cases BC721121 and 21STCV08582 related, assigning BC721121 as the lead case.

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On March 19, 2021, the court (1) granted First American's Motion for Judgment on the Pleadings without leave to amend as to Plaintiff's SAC; (2) granted Kwan, Vibrant, 328 LLC, 600 LLC, and CAH's Motion for Judgment on the Pleadings without leave to amend as to Plaintiff's SAC; (3) overruled Fidelity's Demurrer as to the first, second, third, fourth, fifth, sixth, and seventh causes of action as moot in Plaintiff's SAC; and (4) sustained Fidelity's Demurrer without leave to amend as to the eighth and ninth causes of action in Plaintiff's SAC.

On April 5, 2021, Kwan was dismissed from First American's cross-complaint without prejudice.

On April 19, 2021, Judgment was entered in favor of First American and against Plaintiff. On May 11, 2021, Judgment was entered in favor of the Board of Fire and Police and against Plaintiff.

On June 18, 2021, Plaintiff filed a Notice of Appeal as to the court granting First American's Motion for Judgment on the Pleadings and the Board of Police and Fire's Motion for Summary Judgment.

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On July 1, 2024, the Appellate Court reversed, inter alia, the trial court's order granting First American's Motion for Judgment on the Pleadings and granting the Board of Police and Fire's Motion for Summary Judgment.

On December 6, 2024, Sam, along with CAH, 600 LLC, Chino Americana Concepts CGW LLC ("CGW"), and Chino Americana Concepts W LLC ("W") (CAH, 600 LLC, CGW and W identified as "Entity Plaintiffs" and collectively with Sam, as

"Plaintiffs") filed a Third Amended Complaint ("TAC") against Kwan; Vibrant, 328 LLC, Chino LLC, Board of Fire and Police, and First American (collectively "Defendants") alleging causes of action for:

1.

Breach of Fiduciary Duty;

2.

Breach of Contract;

3.

Quiet Title/Cancellation of Instrument;

4.

Violations of Business and Professions Code Sections 17200, et seq.;

5.

Escrow Negligence;

6.

Fraud;

7.

Civil Conspiracy; and

8.

Declaratory Relief.

On March 14, 2025, the court denied First American and the Board of Fire and Police's Motions to Dismiss.

On July 3, 2025, the court granted Plaintiffs' Motion for Leave to File a Fourth Amended Complaint.

On July 3, 2025, Plaintiffs filed a Fourth Amended Complaint ("4AC") against Defendants and Fidelity (collectively "Defendants") alleging causes of action for:

1.

Breach of Fiduciary Duty (Plaintiffs v. Kwan);

2.

Breach of Fiduciary Duty (CAH, 600 LLC, CGW & W v. First American);

3.

Breach of Contract (Plaintiffs v. Kwan, Vibrant & 328 LLC);

4.

Quiet Title/Cancellation of Instrument (Plaintiffs v. Board of Fire and Police);

5.

Violations of Business and Professions Code Sections 17200 et seq. (Plaintiffs v. Kwan);

6.

Escrow Negligence (CAH, 600 LLC, CGW & W v. First American);

7.

Fraud (Plaintiffs v. Kwan & Fidelity);

8.

Civil Conspiracy (Plaintiffs v. Kwan & Fidelity);

9.

Declaratory Relief (Plaintiffs v. Board of Fire and Police); and

10. Violations of Cal.

Penal Code § 496 (Plaintiffs v. Board of Fire and Police).

On September 11, 2025, the court sustained First American and the Board of Fire and Police's individual Demurrers as to Plaintiffs' 4AC with leave to amend as to standing concerning the derivative claims, and without leave to amend as to the second and sixth causes of action brought directly by Plaintiffs; and denied in part and granted in part First American and the Board of Fire and Police's individual Motions to Strike.

On September 22, 2025, Plaintiffs Chino LLC and Sam, individually and derivatively as majority interest holder of CAH, 600 LLC, CGW and W

("Plaintiffs"), filed a Fifth Amended Complaint ("5AC").

On December 11, 2025, the court denied Plaintiffs' Motion for Leave to Amend without prejudice.

On February 17, 2026, the court granted Plaintiff's Motion for Leave to File a Sixth Amended Complaint.

On February 18, 2026, Plaintiff Sam, individually and derivatively as majority interest holder of CAH, 600 LLC, CGW and W on behalf of Chino LLC ("Plaintiffs"), filed a Sixth Amended Complaint ("6AC").

On May 19, 2026, Chino LLC filed this Motion for Leave to Intervene. On July 14, 2026, First American, the Board of Fire and Police, and the Kwan Defendants ("Opposing Defendants") filed individual limited oppositions. On July 20, 2026, Chino LLC filed a reply.

II.

LEGAL STANDARD

An intervention takes place when a nonparty, an intervenor, seeks to become a party to an action or proceeding between other persons by joining a plaintiff in claiming what is sought by the complaint, joining a defendant in resisting the plaintiff's claims, or demanding anything adverse to both a plaintiff and a defendant. (Code Civ. Proc., § 387, subd. (b).)

"A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests." (Code Civ. Proc., § 387(c).)

If the nonparty timely files its application, then the court shall permit the nonparty to intervene in the action as long as either of the following conditions is satisfied: (A) A provision of law confers an unconditional right to intervene; (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability

to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties. (Code Civ. Proc., § 387, subd. (d)(1).)

Otherwise, the court may permit the nonparty to intervene in the action, as long as the motion is timely, if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both. (Code Civ. Proc., § 387(d)(2).) This section is construed liberally “in favor of intervention.” (Simpson Redwood Co. v. State of California (1987) 196 Cal.App.3d 1192, 1200.) “For permissive intervention three factors are paramount: the intervenor must have a direct interest in the lawsuit, the intervenor must not enlarge the issues raised by the original parties[,] and the intervenor must not tread on the rights of the original parties to conduct their own lawsuit.” (Kuperstein v. Superior Court (1988) 204 Cal.App.3d 598, 600.)

There is no statutory time limit for filing a motion to intervene. (Noya v. A.W. Coulter Trucking (2006) 143 Cal.App.4th 838, 842.) “[T]he timeliness of a motion to intervene under section 387 should be determined based on the date the proposed interveners knew or should have known their interests in the litigation were not being adequately represented.” (Ziani Homeowners Assn. v. Brookfield Ziani LLC (2015) 243 Cal.App.4th 274, 282.) Intervention is possible at any time, even after judgment, if otherwise appropriate. (Mallick v. Superior Court (1979) 89 Cal.App.3d 434, 437.)

If intervention is granted, the intervenor must (1) separately file (a) a complaint-in-intervention, (b) answer-in-intervention, or (c) both and (2) serve all parties. (Code Civ. Proc., § 387, subd. (e).)

III.

DISCUSSION

Chino

LLC moves for leave to intervene in this action as a direct plaintiff pursuant to Code of Civil Procedure section 387(d). (Motion, at p. 1.) Chino LLC contends that intervention is sought to permit Chino LLC to assert direct claims against Defendants arising from the same alleged wrongful conduct, property, and transactions at issue. (Ibid.) Chino LLC argues that intervention is

appropriate a matter of right as Chino LLC holds direct, legally protected interest in the matters subject to this action. (Id., at pp. 5-6.) Chino LLC also argues that disposition of this action without intervention would impair its ability to protect its interests. (Id., at pp. 6-7.)

In opposition, First American and the Board of Fire and Police do not oppose the intervention but rather reserve the right to challenge Chino LLC's claims and pleadings. (First American Opp., at p. 2; Board Opp., at pp. 5-6.) The Board of Fire and Police further argues that the intervention complaint requires dismissal of the derivative claims asserted on behalf of Chino LLC. (Board Opp., at pp. 6-8.)[1]

However, the Kwan Defendants argue that Chino LLC cannot satisfy the requirements for mandatory or permissive intervention. (Kwan Opp., at pp. 5-7.) The Kwan Defendants also argue that the proposed complaint in intervention alleges no wrongdoing by Vibrant or 328 LLC to support a claim and their inclusion as defendants. (Id., at pp. 7-8.)

The court finds that intervention is warranted in this matter. Intervention under Code of Civil Procedure section 387 is mandatory where the party seeking intervention claims an interest in the subject property and the disposition of the action may impair or impede the intervenor's ability to protect that interest, unless that interest is adequately represented by one of more of the existing parties. Chino LLC's intervention into this case is mandatory based on the claims asserted. The court also notes that Defendants will be able to challenge the pleadings filed by Chino LLC through an appropriate motion. Lastly, there is no existing party that can adequately represent Chino LLC's interest based on the nature of the disputed facts.

Accordingly, the motion is granted.

IV.

CONCLUSION

Proposed

Plaintiff-Intervenor Chino Americana Concepts 2013303 LLC's Motion for Leave to Intervene is GRANTED.

[1] The

court will continue the demurrers on calendar and is inclined to SUSTAIN without leave the derivative claims asserted in the 6AC, including the second, fourth, sixth, and tenth causes of action, and address the remaining issues raised in Defendants' Demurrers. The court will discuss with the parties when to continue such hearings as it would also want to know whether additional responding pleadings may be filed now that Chino LLC is a plaintiff in the instant matter.